Asif Ahmad And 3 Others vs State Of U.P. And Another on 20 January, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:9146

Court No. - 77

Case :- APPLICATION U/S 482 No. - 29717 of 2024

Applicant :- Asif Ahmad And 3 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Vishesh Kumar

Counsel for Opposite Party :- G.A.

Hon'ble Arun Kumar Singh Deshwal,J.

1. Heard Sri Vishesh Kumar, learned counsel for the applicants and Sri Sunil Kr. Kushwaha, learned A.G.A. for the State.

2. The instant application has been filed seeking quashing of the entire proceeding of case No. 328 of 2019 (Nida Iqulak vs. Asif Ahmad and others), under Section 12 of the Domestic Violence Act, pending before Civil Judge (J.D.)/FTC CAW, Fatehpur, in view of the settlement agreement dated 14.3.2024 entered into between the parties before the Mediation Centre, High Court Allahabad in Criminal Misc. Application No. 37136 of 2023 (Asif Ahmad and others vs. State of U.P. and another).

3. The fact, giving rise to the present case, is that a matrimonial discord between applicant No.1 and opposite party No.2 has culminated into several cases. Subsequently, an application u/s 482 No. 37136 of 2023 was filed by the applicants against the proceeding under Sections 498-A, 323, 504,

506 I.P.C. and Section 3/4 D.P. Act wherein the matter was referred to the mediation centre of this Court and the parties participated in the mediation proceeding and they arrived at final settlement & agreement dated 14.3.2024. On the basis of the aforesaid settlement and agreement dated 14.3.2024, this Court quashed the proceeding under Sections 498-A, 323 504, 506 I.P.C. and Section 3/4 D.P. Act in Case No. 2542 of 2018 by order dated 21.5.2024.

4. In the present case, the applicant is seeking direction to quash the impugned proceeding under the Domestic Violence Act as per the settlement agreement dated 14.3.2024, entered into between the parties before the mediation centre of this Court.

5. Learned counsel for the applicant submits that the parties have settled their dispute and the proceeding under Section 498-A I.P.C. has already been quashed by this Court in application u/s 482 No. 37136 of 2023 and subsequently, opposite party No. 2 herself withdrew her criminal revision No. 3285 of 2019, pending before this Cort, in pursuance of the settlement agreement dated 14.3.2024. Therefore, no dispute as on date is pending between the parties, but the impugned proceeding has been pending for a long time and the same could not be quashed, though opposite party No.2 has not been appearing before the court. A request is, therefore, made that the impugned proceeding may be quashed on the basis of the aforesaid settlement agreement.

6. Learned A.G.A. has no objection and he submits that the parties have settled through mediation centre.

7. Considering the submissions of learned counsel for the parties and on perusal of the record, it is clear that on the basis of settlement agreement dated 14.3.2024, in pursuance of the reference order of this Court passed in Application u/s 482 No. 37136 of 2023, this Court has already quashed the proceeding under Section 498-A I.P.C. Subsequently, the criminal revision, file by opposite party No.2 before this Court against the order passed under Section 125 Cr.P.C., was also withdrawn by her. Paragraph No.7 of the settlement agreement dated 14.3.2024 is quoted as under:-

> "7. The following settlement has been arrived at between the Parties hereto:-
>
> a) That the parties have already taken divorce and in this regard they have produced a Notarized Affidavit dated 12.03.2024 singed by both the parties, which is being annexed to this settlement-agreement for kind perusal of this Hon'ble Court.
>
> b) That it has been agreed between the parties that the husband shall pay an amount of Rs.6,00,000/- (Rupees Six Lakh only) to the wife which shall include the amount of Mehar, Iddat Period and maintenance.
>
> c) That today i.e. 14.03.2024, the husband has handed over a demand draft, bearing No.922379 dated 11.03.2024 for Rs.6,00,000/- drawn on Union Bank of India in favour of Nida Akhlaq (wife), to the O.P. No.2 and she has acknowledged the receipt of same.

d) That it has been agreed between the parties that the cases filed by them against each other regarding present matrimonial dispute shall be withdrawn by the parties concerned by taking appropriate steps before the Court/authority concerned.

e) That it has also been agreed between the parties that they will not file any case/ complaint against each other regarding the present matrimonial dispute in future also.

f) That it has been agreed between the parties that they shall not violate the terms and conditions of this settlement-agreement, otherwise the aggrieved party will be free to take legal recourse."

8. From perusal of the paragraph No.7, it is clear that through agreement dated 14.3.2024, the parties have settled their dispute and they have decided to eliminate all the proceedings in pursuance of the settlement agreement and permanent alimony was also paid by applicant No.1 to opposite party No.2. Therefore, continuation of the impugned proceeding will be travesty of justice.

9. Thus, in view of the well settled principles of law as laid down by the Hon'ble Apex Court reported in 2003(4) SCC 675 (B.S. Joshi Vs. State of Haryana), J.T. 2008(9) SC 192 (Nikhil Merchant Vs. Central Bureau of investigation and another), (2012) 10 SCC 303 (Gian Singh Vs. State of Punjab), (2014) 9 SCC 653 (Yogendra Yadav and others Vs. State of Jharkhand) and also (2014) 6 SCC 466 (Narendra Singh Vs. State of Punjab), and in view of the settlement agreement dated 14.3.2024, the proceeding of the aforesaid case is hereby quashed.

10. Accordingly, the application stands allowed.

11. As this order has been passed in absence of opposite party No.2, therefore, she will be at liberty to file a recall application, if anything has been concealed by the applicant.

Order Date :- 20.1.2025 Vandana